

ORDER NO: W2023-002827

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN:

Ehab Forieg
Tenant

and

Thorwin Properties
Landlord

ORDER

ADDRESS OF RENTAL UNIT:

The Residential Tenancies Branch held a hearing on May 24, 2023.

Appearances: Tenant Yes Landlord Yes

By authority of Section 154 of The Residential Tenancies Act, the director orders that:

The landlord shall pay the tenant \$815.00 on or before July 4, 2023.

June 12, 2023

Date

J. Thorne-Finch

Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than July 4, 2023. The filing fee is \$50.00, payable in cash, certified cheque or money order to The Minister of Finance when the appeal is filed. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

This Order, including the Reasons for Decision, is a matter of public record.

ORDER NO W2023-002827

REASONS FOR DECISION

The Residential Tenancies Act and tenancy agreements set out responsibilities for landlords and tenants. Section 55 of the Act says that when someone violates those responsibilities and causes a financial loss to the other party, then he or she must compensate the other party for the loss. Sections 152 and 154 of the Act say the Branch has authority to make decisions and orders in disputes between landlords and tenants.

The tenant filed a claim with the Residential Tenancies Branch. The Branch held a hearing on May 24, 2023. The tenant and landlord came to the hearing and gave evidence.

Preliminary Issue: Landlord

When filing the claim, the tenant set out the landlord as both "Throwin Properties" [sic] and "[text deleted]". [text deleted] attended the hearing and confirmed that she is an employee of Thorwin Properties and is not the landlord in her personal capacity. On this basis, the parties agreed to amend the style of cause of the tenant's claim to set out the landlord as Thorwin Properties only. I issue Order No. W2023-002827 naming the landlord as Thorwin Properties.

TENANT'S CLAIM:

Rent: \$1,295.00

Damages to Personal Property: \$992.99

Loss of Personal Property: \$700.00

Utility Bills: \$50.00

Other: \$210.00

Total: \$3,247.99 plus costs.

RENT:

The tenant claimed \$1,295.00 for rent. At the hearing, the tenant clarified that this was in error and that he did not seek to have any rent returned to him. The tenant withdrew this part of the claim.

DAMAGES TO PERSONAL PROPERTY:

The tenant claimed \$992.99 for damages to his property. The tenant has the burden of proof and must prove that his property was damaged, that it was the landlord's fault and that he suffered a loss in the dollar value claimed. The tenant testified that while driving out of the parkade of the rental complex, the automated door suddenly began to close on his vehicle. He said the door hit the trunk of his vehicle "repeatedly", as many as "four or five times". He said the impact of the door damaged the exterior of his vehicle.

The tenant said that [text deleted], his automotive insurance provider is an Albertan company. As a result, his deductible is much higher than would ordinarily be the case for a Manitoban with coverage under Manitoba Public Insurance. The tenant testified that his deductible is [text deleted]; he provided a screen capture of a website as evidence of this. For this reason, the tenant elected to pay for the repairs himself. He provided an invoice in the amount of \$992.99 for the repairs to his vehicle.

The landlord's agent did not dispute the tenant's version of events. She did not contest the landlord's liability for the damages to the tenant's vehicle. Rather, the landlord disagreed with the amount of compensation sought by the tenant. The landlord argued that it was not their fault that the tenant's insurance policy had such an expensive deductible. The landlord took the position that they should not be obligated to pay any more than they would have to pay someone with insurance provided by Manitoba Public Insurance.

I am not persuaded by the landlord's argument on this point. The landlord is liable to the tenant for the losses he suffered. It is not the tenant's fault that the landlord's parkade door damaged his vehicle. It is unfortunate for the landlord that their door damaged the vehicle of an individual who was not insured by Manitoba Public Insurance, but this fact does not by itself diminish their liability to the tenant.

However, I must also take into consideration the fact that the tenant did not provide a range of competitive quotes to demonstrate that the costs he incurred to effect the repairs represent an industry-standard rate for the type of repairs that were necessary in the circumstances. The tenant provided only one invoice. In the absence of evidence establishing that the tenant sought a range of quotes from various garages to demonstrate an effort to minimize his losses, I am not persuaded the tenant's evidence demonstrates compliance with Section 55(2) of the Act, which provides as follows:

Duty to minimize losses

55(2) When a landlord or a tenant becomes liable to compensate another person, the person entitled to claim compensation has a duty to minimize his or her losses.

Because of this, while I do not agree with the landlord's reasoning I nevertheless arrive at the result they sought. I am not persuaded that it would be appropriate to award the full amount of compensation sought by the tenant. In the absence of evidence from the tenant to demonstrate that \$992.99 represents an industry-standard median cost for the repairs I find compensation in the amount of \$750.00, representing approximately 75% of the compensation claimed, to be reasonable in the circumstances. The tenant's claim for damages to personal property succeeds in that amount.

LOSS OF PERSONAL PROPERTY:

The tenant claimed \$700.00 for the loss of personal property. At the hearing, the tenant explained that this claim was for [text deleted] lost wages [text deleted] he suffered as a result of the damages to his vehicle. The tenant has the burden of proof and must prove that the landlord's actions or inaction caused him to suffer the losses alleged. The tenant provided a handwritten list of several work days and wages earned as evidence of his hourly wages.

I am not persuaded that the tenant has demonstrated that the time he had to spend in response to this incident necessarily had to occur during his working hours. I am not satisfied I have before me a sufficient evidentiary foundation for me to conclude that the tenant had no reasonable alternative but to miss the hours of work he claims he did. He also provided no evidence, such as records of his pay, to prove that he actually lost wages. I furthermore find the handwritten list to be of little evidentiary reliability in establishing his wages. For these reasons, this part of the tenant's claim does not succeed.

UTILITY BILLS:

The tenant claimed \$50.00 for utility bills. At the hearing, the tenant explained this claim was for the filing fee he paid the Branch to file his claim. As this is a claim for costs, I shall deal with it in the section below titled 'Costs'.

OTHER:

The tenant claimed \$210.00 for other miscellaneous losses. The tenant has the burden of proof and must prove that the landlord's actions or inaction caused him to suffer the losses alleged. The tenant claimed this compensation for a further three hours of wages lost as a result of this incident. Based on the reasoning set out in the section above titled 'Loss of Personal Property', I am not persuaded the tenant has demonstrated an entitlement to compensation for his allegedly lost wages. This part of the tenant's claim does not succeed.

COSTS:

The tenant claimed the costs to file, serve, prove and enforce the claim. Section 154(1) of the Act gives the Branch the authority to award costs. The landlord shall pay the tenant's costs in the amount of \$65.00 pursuant to Section 3 of the Costs Regulation.

AWARDED TO TENANT:

Damages to Personal Property: \$750.00

Costs: \$65.00

Total: \$815.00

SUMMARY:

The landlord shall pay the tenant \$815.00 on or before July 4, 2023.

June 12, 2023

Date

J. Thorne-Finch

Residential Tenancies Officer